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Over the last five years, nearly 77% of screenings have resulted in a finding of credible fear.⁶ And nearly half the remainder (11% of the total number of screenings) were closed for administrative reasons, including the alien’s withdrawal of the claim.⁷ As a practical matter, then, the great majority of asylum seekers who fall within the category subject to expedited removal do not receive expedited removal and are instead afforded the same procedural rights as other aliens.

Whether an applicant who raises an asylum claim receives full or only expedited review, the applicant is not entitled to immediate release. Applicants “shall be detained pending a final determination of credible fear of persecution and, if found not to have such a fear, until removed.” § 1225(b)(1)(B)(iii)(IV). Applicants who are found to have a credible fear may also be detained pending further consideration of their asylum applications. § 1225(b)(1)(B)(ii); see *Jennings v. Rodriguez*, 583 U. S. 281, 287, 297 (2018).⁸

B

The IIRIRA provision at issue in this case, § 1252(e)(2), limits the review that an alien in expedited removal may obtain via a petition for a writ of habeas corpus. That provision allows habeas review of three matters: first, “whether the petitioner is an alien”; second, “whether the petitioner was ordered removed”; and third, whether the petitioner has already been granted entry as a lawful permanent resident, refugee, or asylee. §§ 1252(e)(2)(A)–(C). If the petitioner has such a status, or if a removal order has not “in fact”

⁶See GAO, Immigration: Actions Needed To Strengthen USCIS’s Oversight and Data Quality of Credible and Reasonable Fear Screenings 13–15, and fig. 2 (GAO–20–250, Feb. 2020).

⁷See *id.*, at 16, n. b.

⁸The Department may grant temporary parole “for urgent humanitarian reasons or significant public benefit.” 8 U. S. C. § 1182(d)(5)(A); see also 8 CFR §§ 212.5(b), 235.3(b)(2)(iii), and (b)(4)(ii).

been “issued,” § 1252(e)(5), the court may order a removal hearing, § 1252(e)(4)(B).

A major objective of IIRIRA was to “protect the Executive’s discretion” from undue interference by the courts; indeed, “that can fairly be said to be the theme of the legislation.” *Reno v. American-Arab Anti-Discrimination Comm.*, 525 U. S. 471, 486 (1999) (*AAADC*). In accordance with that aim, § 1252(e)(5) provides that “[t]here shall be no review of whether the alien is actually inadmissible or entitled to any relief from removal.” And “[n]otwithstanding” any other “habeas corpus provision”—including 28 U. S. C. § 2241—“no court shall have jurisdiction to review” any other “individual determination” or “claim arising from or relating to the implementation or operation of an order of [expedited] removal.” § 1252(a)(2)(A)(i). In particular, courts may not review “the determination” that an alien lacks a credible fear of persecution. § 1252(a)(2)(A)(iii); see also §§ 1252(a)(2)(A)(ii), (iv) (other specific limitations).

Even without the added step of judicial review, the credible-fear process and abuses of it can increase the burdens currently “overwhelming our immigration system.” 84 Fed. Reg. 33841 (2019).⁹ The past decade has seen a 1,883%

⁹ References to the factual material in this regulation are not endorsements of the regulation itself. And like the immigration officials in this case, we do not question the basis for respondent’s asserted fear. See *infra*, at 114. But we note the Department’s view that credible-fear claims can be asserted “in the hope of a lengthy asylum process that will enable [the claimants] to remain in the United States for years . . . despite their statutory ineligibility for relief” and that an influx of meritless claims can delay the adjudication of meritorious ones; strain detention capacity and degrade detention conditions; cause the release of many inadmissible aliens into States and localities that must shoulder the resulting costs; divert Department resources from protecting the border; and aggravate “the humanitarian crisis created by human smugglers.” 84 Fed. Reg. 33831; see also, *e. g.*, Violent Crime Control and Law Enforcement Act of 1994, § 130010(a)(3)(C), 108 Stat. 2030 (legislative finding of “a drain on limited resources resulting from the high cost of processing frivolous asylum claims”); *Arizona v. United States*, 567 U. S. 387, 397–398 (2012);

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increase in credible-fear claims, and in 2018 alone, there were 99,035 claims. See *id.*, at 33838 (data for fiscal years 2008 to 2018). The majority have proved to be meritless. Many applicants found to have a credible fear—about 50% over the same 10-year period—did not pursue asylum. See EOIR, Adjudication Statistics: Rates of Asylum Filings in Cases Originating With a Credible Fear Claim (Nov. 2018); see also 84 Fed. Reg. 33841 (noting that many instead abscond). In 2019, a grant of asylum followed a finding of credible fear just 15% of the time. See EOIR, Asylum Decision Rates in Cases Originating With a Credible Fear Claim (Oct. 2019). Fraudulent asylum claims can also be difficult to detect,¹⁰ especially in a screening process that is designed to be expedited and that is currently handling almost 100,000 claims per year.

The question presented thus has significant consequences for the immigration system. If courts must review credible-fear claims that in the eyes of immigration officials and an immigration judge do not meet the low bar for such claims, expedited removal would augment the burdens on that system. Once a fear is asserted, the process would no longer be expedited.

Homeland Security Advisory Council, Final Emergency Interim Report 1, 7–8 (Apr. 16, 2019); Letter from K. Nielsen, Secretary of Homeland Security, to Members of Congress 1–2 (Mar. 28, 2019); GAO, Asylum: Additional Actions Needed To Assess and Address Fraud Risks 24 (GAO–16–50, Dec. 2015) (GAO Fraud Report); Congressional Budget Office, The Impact of Unauthorized Immigrants on the Budgets of State and Local Governments 8–9 (Dec. 2007); Brief for State of Arizona et al. as *Amici Curiae* 9–12.

¹⁰ See, e.g., GAO Fraud Report 32–33 (discussing Operation Fiction Writer, a criminal investigation of attorneys and application preparers who counseled asylum seekers to lie about religious persecution and forced abortions); Asylum Fraud: Abusing America's Compassion? Hearing before the Subcommittee on Immigration and Border Security of the House Committee on the Judiciary, 113th Cong., 2d Sess. (2014) (testimony of Louis D. Crocetti, Jr.) (describing study in which 58% of randomly selected asylum applications exhibited indicators of possible fraud and 12% were determined to be fraudulent).

C

Respondent Vijayakumar Thuraissigiam, a Sri Lankan national, crossed the southern border without inspection or an entry document at around 11 p.m. one night in January 2017. App. 38. A Border Patrol agent stopped him within 25 yards of the border, and the Department detained him for expedited removal. *Id.*, at 37–39, 106; see §§ 1182(a)(7)(A)(i)(I), 1225(b)(1)(A)(ii), and (b)(1)(B)(iii)(IV). He claimed a fear of returning to Sri Lanka because a group of men had once abducted and severely beaten him, but he said that he did not know who the men were, why they had assaulted him, or whether Sri Lankan authorities would protect him in the future. *Id.*, at 80. He also affirmed that he did not fear persecution based on his race, political opinions, or other protected characteristics. *Id.*, at 76–77; see § 1101(a)(42)(A).

The asylum officer credited respondent's account of the assault but determined that he lacked a "credible" fear of persecution, as defined by § 1225(b)(1)(B)(v), because he had offered no evidence that could have made him eligible for asylum (or other removal relief). *Id.*, at 83, 87, 89; see § 1158(b)(1)(A). The supervising officer agreed and signed the removal order. *Id.*, at 54, 107. After hearing further testimony from respondent, an Immigration Judge affirmed on *de novo* review and returned the case to the Department for removal. *Id.*, at 97.

Respondent then filed a federal habeas petition. Asserting for the first time a fear of persecution based on his Tamil ethnicity and political views, *id.*, at 12–13, he argued that he "should have passed the credible fear stage," *id.*, at 30. But, he alleged, the immigration officials deprived him of "a meaningful opportunity to establish his claims" and violated credible-fear procedures by failing to probe past his denial of the facts necessary for asylum. *Id.*, at 27, 32. Allegedly they also failed to apply the "correct standard" to his claims—the "significant possibility" standard—despite its repeated appearance in the records of their decisions. *Id.*, at

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30; see *id.*, at 53, 84–89, 97. Respondent requested “a writ of habeas corpus, an injunction, or a writ of mandamus directing [the Department] to provide [him] a new opportunity to apply for asylum and other applicable forms of relief.” *Id.*, at 33. His petition made no mention of release from custody.

The District Court dismissed the petition, holding that §§ 1252(a)(2) and (e)(2) and clear Ninth Circuit case law foreclosed review of the negative credible-fear determination that resulted in respondent’s expedited removal order. 287 F. Supp. 3d 1077, 1081 (SD Cal. 2018). The court also rejected respondent’s argument “that the jurisdictional limitations of § 1252(e) violate the Suspension Clause,” again relying on Circuit precedent. *Id.*, at 1082–1083.

The Ninth Circuit reversed. It found that our Suspension Clause precedent demands “reference to the writ as it stood in 1789.” 917 F. 3d 1097, 1111 (2019). But without citing any pre-1789 case about the scope of the writ, the court held that § 1252(e)(2) violates the Suspension Clause. See *id.*, at 1113–1119. The court added that respondent “has procedural due process rights,” specifically the right “to expedited removal proceedings that conformed to the dictates of due process.” *Id.*, at 1111, n. 15 (quoting *United States v. Raya-Vaca*, 771 F. 3d 1195, 1203 (CA9 2014)). Although the decision applied only to respondent, petitioners across the Circuit have used it to obtain review outside the scope of § 1252(e)(2), and petitioners elsewhere have attempted to follow suit.¹¹

¹¹ See, e.g., *Mnatsakanyan v. United States Dept. of Homeland Security*, 2020 WL 1245371, *5 (SD Cal., Mar. 16, 2020) (“Given the identical claims here as in *Thuraissigiam*, the Court concludes it has jurisdiction over Petitioner’s habeas petition under the Suspension Clause”); *Kaur v. Barr*, 2019 WL 4974425, *3 (D Ariz., Oct. 8, 2019) (granting stay of removal in light of the decision below); *Rodriguez v. McAleenan*, 435 F. Supp. 3d 731, 734, 738 (ND Tex. 2020) (declining to follow the decision below).

The Ninth Circuit’s decision invalidated the application of an important provision of federal law and conflicted with a decision from another Circuit, see *Castro v. United States Dept. of Homeland Security*, 835 F. 3d 422 (CA3 2016). We granted certiorari, 589 U. S. 1030 (2019).

II

A

The Suspension Clause provides that “[t]he Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it.” U. S. Const., Art. I, § 9, cl. 2. In *INS v. St. Cyr*, 533 U. S. 289 (2001), we wrote that the Clause, at a minimum, “protects the writ as it existed in 1789,” when the Constitution was adopted. *Id.*, at 301 (internal quotation marks omitted). And in this case, respondent agrees that “there is no reason” to consider whether the Clause extends any further. Brief for Respondent 26, n. 12. We therefore proceed on that basis.¹²

¹²The original meaning of the Suspension Clause is the subject of controversy. In *INS v. St. Cyr*, 533 U. S. 289 (2001), the majority and dissent debated whether the Clause independently guarantees the availability of the writ or simply restricts the temporary withholding of its operation. Compare *id.*, at 300, with *id.*, at 336–341 (Scalia, J., dissenting). See also *Ex parte Bollman*, 4 Cranch 75, 95 (1807). We do not revisit that question. Nor do we consider whether the scope of the writ as it existed in 1789 defines the boundary of the constitutional protection to which the *St. Cyr* Court referred, since the writ has never encompassed respondent’s claims.

We also do not reconsider whether the common law allowed the issuance of a writ on behalf of an alien who lacked any allegiance to the country. Compare *Boumediene v. Bush*, 553 U. S. 723, 746–747 (2008) (forming “no certain conclusions”), with Brief for Criminal Justice Legal Foundation as *Amicus Curiae* 5–13. See also Hamburger, *Beyond Protection*, 109 Colum. L. Rev. 1823, 1847 (2009); P. Halliday, *Habeas Corpus: From England to Empire* 204 (2010) (Halliday).

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B

This principle dooms respondent’s Suspension Clause argument, because neither respondent nor his *amici* have shown that the writ of habeas corpus was understood at the time of the adoption of the Constitution to permit a petitioner to claim the right to enter or remain in a country or to obtain administrative review potentially leading to that result. The writ simply provided a means of contesting the lawfulness of restraint and securing release.

In 1768, Blackstone’s Commentaries—usually a “satisfactory exposition of the common law of England,” *Schick v. United States*, 195 U.S. 65, 69 (1904)—made this clear. Blackstone wrote that habeas was a means to “remov[e] the injury of unjust and illegal confinement.” 3 W. Blackstone, Commentaries on the Laws of England 137 (emphasis deleted). Justice Story described the “common law” writ the same way. See 3 Commentaries on the Constitution of the United States §1333, p. 206 (1833). Habeas, he explained, “is the appropriate remedy to ascertain . . . whether any person is rightfully in confinement or not.” *Ibid.*

We have often made the same point. See, e.g., *Preiser v. Rodriguez*, 411 U.S. 475, 484 (1973) (“It is clear . . . from the common-law history of the writ . . . that the essence of habeas corpus is an attack by a person in custody upon the legality of that custody, and that the traditional function of the writ is to secure release from illegal custody”); *Wilkinson v. Dotson*, 544 U.S. 74, 79 (2005) (similar); *Munaf v. Geren*, 553 U.S. 674, 693 (2008) (similar).

In this case, however, respondent did not ask to be released.¹³ Instead, he sought entirely different relief: vaca-

¹³ In his brief, respondent states that “he requests an entirely ordinary habeas remedy: conditional release pending a lawful adjudication. J. A. 33.” Brief for Respondent 29. Citing the same page, the dissent argues that respondent “asked the District Court to ‘[i]ssue a writ of habeas corpus’ without further limitation on the kind of relief that might en-

tur of his “removal order” and “an order directing [the Department] to provide him with a new . . . opportunity to apply for asylum and other relief from removal.” App. 14 (habeas petition). See also *id.*, at 31 (“a fair procedure to apply for asylum, withholding of removal, and CAT relief”); *id.*, at 14 (“a new, meaningful opportunity to apply for asylum and other relief from removal”). Such relief might fit an injunction or writ of mandamus—which tellingly, his petition also requested, *id.*, at 33—but that relief falls outside the scope of the common-law habeas writ.

Although the historic role of habeas is to secure release from custody, the Ninth Circuit did not suggest that release, at least in the traditional sense of the term,¹⁴ was required. Instead, what it found to be necessary was a “meaningful opportunity” for review of the procedures used in determining that respondent did not have a credible fear of persecution. 917 F.3d, at 1117. Thus, even according to the Ninth Circuit, respondent’s petition did not call for traditional habeas relief.

Not only did respondent fail to seek release, he does not dispute that confinement during the pendency of expedited asylum review, and even during the additional proceedings he seeks, is lawful. Nor could he. It is not disputed that he was apprehended in the very act of attempting to enter this country; that he is inadmissible because he lacks an

tail.” *Post*, at 164 (opinion of SOTOMAYOR, J.) (quoting App. 33). However, neither on the cited page nor at any other place in the habeas petition is release, conditional or otherwise, even mentioned. And in any event, as we discuss *infra*, at 120–125, the critical point is that what he sought in the habeas petition and still seeks—a writ “directing [the Department] to provide [him] a new opportunity to apply for asylum,” App. 33—is not a form of relief that was available in habeas at the time of the adoption of the Constitution.

¹⁴ Although the Ninth Circuit never mentioned release, its opinion might be read to suggest that gaining a right to remain in this country would constitute a release from the “restraint” of exclusion. See 917 F.3d 1097, 1117 (2019). No evidence has been called to our attention that the writ was understood in 1789 to apply to any comparable form of restraint.

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entry document, see §§ 1182(a)(7)(A), 1225(b)(1)(A)(i); and that, under these circumstances, his case qualifies for the expedited review process, including “[m]andatory detention” during his credible-fear review, §§ 1225(b)(1)(B)(ii), (iii)(IV). Moreover, simply releasing him would not provide the right to stay in the country that his petition ultimately seeks. Without a change in status, he would remain subject to arrest, detention, and removal. §§ 1226(a), 1229a(e)(2).

While respondent does not claim an entitlement to release, the Government is happy to release him—provided the release occurs in the cabin of a plane bound for Sri Lanka. That would be the equivalent of the habeas relief Justice Story ordered in a case while riding circuit. He issued a writ requiring the release of a foreign sailor who jumped ship in Boston, but he provided for the sailor to be released into the custody of the master of his ship. *Ex parte D’Oliveira*, 7 F. Cas. 853, 854 (No. 3,967) (CC Mass. 1813).

Respondent does not want anything like that. His claim is more reminiscent of the one we rejected in *Munaf*. In that case, American citizens held in U. S. custody in Iraq filed habeas petitions in an effort to block their transfer to Iraqi authorities for criminal prosecution. See 553 U. S., at 692. Rejecting this use of habeas, we noted that “[h]abeas is at its core a remedy for unlawful executive detention” and that what these individuals wanted was not “simple release” but an order requiring them to be brought to this country. *Id.*, at 693, 697. Claims so far outside the “core” of habeas may not be pursued through habeas. See, e. g., *Skinner v. Switzer*, 562 U. S. 521, 535, n. 13 (2011).

Like the habeas petitioners in *Munaf*, respondent does not want “simple release” but, ultimately, the opportunity to remain lawfully in the United States. That he seeks to stay in this country, while the habeas petitioners in *Munaf* asked to be brought here from Iraq, see *post*, at 176–177 (opinion of SOTOMAYOR, J.), is immaterial. In this case as in *Munaf*, the relief requested falls outside the scope of the writ as it was understood when the Constitution was adopted. See *Castro*,

835 F. 3d, at 450–451 (Hardiman, J., concurring dubitante) (“Petitioners here seek to alter their status in the United States in the hope of avoiding release to their homelands. That prayer for relief . . . dooms the merits of their Suspension Clause argument” (emphasis deleted)).

III

Disputing this conclusion, respondent argues that the Suspension Clause guarantees a broader habeas right. To substantiate this claim, he points to three bodies of case law: British and American cases decided prior to or around the time of the adoption of the Constitution, decisions of this Court during the so-called “finality era” (running from the late 19th century to the mid-20th century), and two of our more recent cases. None of these sources support his argument.

A

Respondent and *amici* supporting his position have done considerable research into the use of habeas before and around the time of the adoption of the Constitution,¹⁵ but they have not unearthed evidence that habeas was then used to obtain anything like what is sought here, namely, authorization for an alien to remain in a country other than his own or to obtain administrative or judicial review leading to that result. All that their research (and the dissent’s) shows is that habeas was used to seek release from detention in a variety of circumstances. In fact, respondent and his *amici* do not argue that their cases show anything more. See Brief for Respondent 27 (arguing that habeas was “available” at the founding “to test all forms of physical restraint”);

¹⁵ Respondent and his *amici* rely primarily on British cases decided before the adoption of the Constitution. “There is widespread agreement that the common-law writ of *habeas corpus* was in operation in all thirteen of the British colonies that rebelled in 1776,” but “almost no reported decisio[n] from the period.” Oldham & Wishnie, *The Historical Scope of Habeas Corpus* and *INS v. St. Cyr*, 16 Geo. Immigration L. J. 485, 496 (2002) (Oldham & Wishnie) (internal quotation marks omitted).

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Brief for Scholars of the Law of Habeas Corpus as *Amici Curiae* 11 (the “historical record . . . demonstrates that the touchstone for access to the writ” was “whether the petitioner challenges control of his person”).

Because respondent seeks to use habeas to obtain something far different from simple release, his cause is not aided by the many release cases that he and his *amici* have found. Thus, for present purposes, it is immaterial that habeas was used to seek release from confinement that was imposed for, among other things, contempt of court (see *Bushell’s Case*, Vaugh. 135, 124 Eng. Rep. 1006 (C. P. 1670)), debt (see *Hollingshead’s Case*, 1 Salk. 351, 91 Eng. Rep. 307 (K. B. 1702); *Rex v. Nathan*, 2 Str. 880, 93 Eng. Rep. 914 (K. B. 1724)), medical malpractice (see *Dr. Groenvelt’s Case*, 1 Raym. Ld. 213, 91 Eng. Rep. 1038 (K. B. 1702)), failing to pay an assessment for sewers (see *Hetley v. Boyer*, Cro. Jac. 336, 79 Eng. Rep. 287 (K. B. 1613)), failure to lend the King money (see *Darnel’s Case*, 3 How. St. Tr. 1 (K. B. 1627)), carrying an authorized “dagge,” *i. e.*, handgun (see *Gardener’s Case*, Cro. Eliz. 821, 78 Eng. Rep. 1048 (K. B. 1600)), “impressment” into military service or involuntary servitude (see *St. Cyr*, 533 U. S., at 302), or refusing to pay a colonial tax (see *Oldham & Wishnie* 496). Nor does it matter that common-law courts sometimes ordered or considered ordering release in circumstances that would be beyond the reach of any habeas statute ever enacted by Congress, such as release from private custody. See, *e. g.*, *Rex v. Delaval*, 3 Burr. 1434, 1435–1437, 97 Eng. Rep. 913, 914 (K. B. 1763) (release of young woman from “indentures of apprenticeship”); *Rex v. Clarkson*, 1 Str. 444, 93 Eng. Rep. 625 (K. B. 1722) (release from boarding school); *Lister’s Case*, 8 Mod. 22, 88 Eng. Rep. 17 (K. B. 1721) (release of wife from estranged husband’s restraint). What matters is that all these cases are about release from restraint. Accord, *Preiser*, 411 U. S., at 484–485, and nn. 3–5.¹⁶

¹⁶ Respondent’s *amici* also point out that, during the English Civil War, Parliament created a national religion and a “bewildering array of committees” to manage the war. Brief for Legal Historians as *Amici Curiae* 10

Respondent and his *amici* note that habeas petitioners were sometimes released on the condition that they conform to certain requirements. See Brief for Respondent 30; Legal Historians Brief 18. For example, they cite a case in which a man was released on condition that he treat his wife well and support her, and another in which a man was released on condition that he issue an apology. *Ibid.* But what respondent sought in this case is nothing like that. Respondent does not seek an order releasing him on the condition that he do or refrain from doing something. What he wants—further review of his asylum claim—is not a condition with which he must comply. Equally irrelevant is the practice, discussed in the dissent, of allowing the executive to justify or cure a defect in detention before requiring release. See *post*, at 173–175. Respondent does not seek this sort of conditional release either, because the legality of his detention is not in question.

Respondent contends that two cases show that habeas could be used to secure the right of a non-citizen to remain in a foreign country, but neither proves his point. His first case, involving a Scot named Murray, is one for which no official report is available for us to review.¹⁷ We could hardly base our decision here on such a decision.¹⁸

(Legal Historians Brief) (internal quotation marks omitted). They argue that “[h]abeas corpus was readily available to test the legality of their actions.” *Ibid.* But according to their source, the challenged actions were “imprisonment orders,” including imprisonment of clergymen who refused to conform. Halliday 163–164.

¹⁷ Respondent cites a secondary source, which in turn cites to the National Archives in London. See Brief for Respondent 27 (citing Halliday 236).

¹⁸ Whether the founding generation understood habeas relief more broadly than described by Blackstone, Justice Story, and our prior cases, see *supra*, at 117, cannot be settled by a single case or even a few obscure and possibly aberrant cases. And in any event, what is said here about Murray’s case provides little support for respondent’s position. In 1677, we are told, Murray was imprisoned in England so that he could be “‘sent into Scotland’” for a criminal trial, but the King’s Bench twice issued a

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His second case, *Somerset v. Stewart*, Lofft. 1, 98 Eng. Rep. 499 (K. B. 1772), is celebrated but does not aid respondent. James Somerset was a slave who was “detain[ed]” on a ship bound for Jamaica, and Lord Mansfield famously ordered his release on the ground that his detention as a slave was unlawful in England. *Id.*, at 19, 98 Eng. Rep., at 510. This relief, release from custody, fell within the historic core of habeas, and Lord Mansfield did not order anything else.

It may well be that a collateral consequence of Somerset’s release was that he was allowed to remain in England, but if that is so, it was due not to the writ issued by Lord Mansfield, but to English law regarding entitlement to reside in the country. At the time, England had nothing like modern immigration restrictions. As late as 1816, the word “deportation” apparently “was not to be found in any English dictionary.” The Use of the Crown’s Power of Deportation Under the Aliens Act, 1793–1826, in J. Dinwiddy, *Radicalism and Reform in Britain, 1780–1850*, p. 150, n. 4 (1992); see also, *e. g.*, Craies, *The Right of Aliens To Enter British Territory*, 6 L. Q. Rev. 27, 35 (1890) (“England was a complete asylum to the foreigner who did not offend against its laws”); Haycraft, *Alien Legislation and the Prerogative of the Crown*, 13 L. Q. Rev. 165, 180 (1897) (“There do not appear to have been any transactions in Parliament or in the [Crown’s] Privy Council directly affecting [deportation] from the time of Elizabeth [I] to that of George III”).¹⁹

writ of habeas corpus requiring his release. Brief for Respondent 27 (quoting Halliday 236). Putting aside the “delicate” relationship between England and Scotland at the time, *Boumediene*, 553 U.S., at 749, issuance of a writ to secure the release of a person held in pretrial custody is far afield from what respondent wants here.

¹⁹This regime lasted until after 1789, when the Aliens Act of 1793 authorized justices of the peace to imprison “without bail or mainprize” (*i. e.*, bond) any alien found without a passport, who could then be “sen[t] out of th[e] realm.” An Act for Regulating Immigration into Great Britain, 33 Geo. III, ch. 4, §§ 11, 29.

For a similar reason, respondent cannot find support in early 19th-century American cases in which deserting foreign sailors used habeas to obtain their release from the custody of American officials. In none of the cases involving deserters that have been called to our attention did the court order anything more than simple release from custody. As noted, Justice Story ordered a sailor's release into the custody of his ship's master. See *Ex parte D'Oliviera*, 7 F. Cas., at 854. Other decisions, while ordering the release of detained foreign deserters because no statute authorized detention, chafed at having to order even release. See *Case of the Deserters from the British Frigate L'Africaine*, 3 Am. L. J. & Misc. Repertory 132, 135–136 (Md. 1810) (reporting judge's statement "that he never would interfere to prevent" the British consul himself from detaining British deserters); *Case of Hippolyte Dumas*, 2 Am. L. J. & Misc. Repertory 86, 87 (Pa. 1809) (noting "inconvenience" that U. S. law did not discourage desertion of foreign sailors); *Commonwealth v. Holloway*, 1 Serg. & Rawle 392, 396 (Pa. 1815) (opinion of Tilghman, C. J.) (same); *id.*, at 397 (opinion of Yeates, J.) (same). These cases thus do not contemplate the quite different relief that respondent asks us to sanction here.

In these cases, as in *Somerset*, it may be that the released petitioners were able to remain in the United States as a collateral consequence of release, but if so, that was due not to the writs ordering their release, but to U. S. immigration law or the lack thereof. These decisions came at a time when an "open door to the immigrant was the . . . federal policy." *Harisiades v. Shaughnessy*, 342 U. S. 580, 588, n. 15 (1952); see also *St. Cyr*, 533 U. S., at 305 (first immigration regulation enacted in 1875). So release may have had the side effect of enabling these individuals to remain in this country, but that is beside the point.

The relief that a habeas court may order and the collateral consequences of that relief are two entirely different things. Ordering an individual's release from custody may have the side effect of enabling that person to pursue all sorts of op-

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portunities that the law allows. For example, release may enable a qualified surgeon to operate on a patient; a licensed architect may have the opportunity to design a bridge; and a qualified pilot may be able to fly a passenger jet. But a writ of habeas could not be used to compel an applicant to be afforded those opportunities or as a means to obtain a license as a surgeon, architect, or pilot. Similarly, while the release of an alien may give the alien the opportunity to remain in the country if the immigration laws permit, we have no evidence that the writ as it was known in 1789 could be used to require that aliens be permitted to remain in a country other than their own, or as a means to seek that permission.

Respondent's final examples involve international extradition, but these cases are no more pertinent than those already discussed. For one thing, they post-date the founding era. England was not a party to any extradition treaty in 1789, and this country's first extradition treaty was the Jay Treaty of 1794. See 1 J. Moore, *Extradition and Interstate Rendition* §§ 7, 78, pp. 10, 89 (1891). In any event, extradition cases, similar to the deserter cases, illustrate nothing more than the use of habeas to secure release from custody when not in compliance with the extradition statute and relevant treaties. As noted by a scholar on whose work respondent relies, these cases "examine[d] the lawfulness of magistrates' decisions permitting the executive to detain aliens." Neuman, *Habeas Corpus, Executive Detention, and the Removal of Aliens*, 98 Colum. L. Rev. 961, 1003 (1998). In these cases, as in all the others noted above, habeas was used "simply" to seek release from allegedly unlawful detention. *Benson v. McMahon*, 127 U. S. 457, 463 (1888). See also, e. g., *In re Stupp*, 23 F. Cas. 296, 303 (No. 13,563) (CC SDNY 1875).²⁰

²⁰ *Amici* supporting respondent make an additional argument. They contend that "[i]n eighteenth century practice, the authority of English judges to review habeas petitions was not constrained by past decisions" and that these judges felt free to innovate in order to ensure that justice

Despite pages of rhetoric, the dissent is unable to cite a single pre-1789 habeas case in which a court ordered relief that was anything like what respondent seeks here. The dissent instead contends that “the Suspension Clause inquiry does not require a close (much less precise) factual match with historical habeas precedent,” *post*, at 168, and then discusses cases that are not even close to this one. The dissent reveals the true nature of its argument by suggesting that there are “inherent difficulties [in] a strict originalist approach in the habeas context because of, among other things, the dearth of reasoned habeas decisions at the founding.” *Post*, at 167. But respondent does not ask us to hold that the Suspension Clause guarantees the writ as it might have evolved since the adoption of the Constitution. On the contrary, as noted at the outset of this discussion, he rests his argument on “the writ as it existed in 1789.” Brief for Respondent 26, n. 12.

What the dissent merely implies, one concurring opinion states expressly, arguing that the scope of the writ guaranteed by the Suspension Clause “may change ‘depending upon the circumstances’” and thus may allow certain aliens to seek relief other than release. *Post*, at 152 (BREYER, J., con-

was done. Legal Historians Brief 5–6. But the role of federal courts under our Constitution is very different from that of those English judges. The English judges “were considered agents of the Crown, designed to assist the King in the exercise of his power.” *Boumediene*, 553 U. S., at 740. The court with primary habeas jurisdiction, after all, was called the King’s Bench, on which the King “was theoretically always present.” Halliday & White, *The Suspension Clause: English Text, Imperial Contexts, and American Implications*, 94 Va. L. Rev. 575, 594, 598, and n. 49 (2008). Habeas was an exercise of the King’s prerogative “to have an account . . . why the liberty of any of his subjects is restrained.” 3 J. Story, *Commentaries on the Constitution of the United States* §1335, p. 207 (1833); accord, Legal Historians Brief 5–7. In our federal courts, by contrast, the scope of habeas has been tightly regulated by statute, from the Judiciary Act of 1789 to the present day, and precedent is as binding in a habeas case as in any other. See, e.g., *Jenkins v. Hutton*, 582 U. S. 280, 284 (2017) (*per curiam*).

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curring in judgment) (quoting *Boumediene*, 553 U. S., at 779). But that is not respondent’s argument, and as a general rule “we rely on the parties to frame the issues for decision and assign to courts the role of neutral arbiter of matters the parties present.” *United States v. Sineneng-Smith*, 590 U. S. 371, 375 (2020) (internal quotation marks omitted). In any event, the concurrence’s snippets of quotations from *Boumediene* are taken entirely out of context. They relate to the question whether the statutory review procedures for Guantanamo detainees *seeking release from custody* provided an adequate substitute for a habeas petition *seeking release*. See *infra*, at 136–138. They do not suggest that any habeas writ guaranteed by the Suspension Clause permits a petitioner to obtain relief that goes far beyond the “core” of habeas as “a remedy for unlawful executive detention.” *Munaf*, 553 U. S., at 693.²¹

²¹This concurrence imagines three horrible possibilities that it fears could come to pass unless we interpret the Suspension Clause to protect the right to some undefined category of relief beyond release from custody. See *post*, at 151 (opinion of BREYER, J.). But its interpretation is neither necessary nor obviously sufficient to prevent the possibilities it fears. First, if a citizen were detained for deportation, today’s opinion would not prevent the citizen from petitioning for release. Second, if respondent’s “procedural” claims do not merit habeas review, as the concurrence concludes, *post*, at 156–157, it is not clear why habeas should help the concurrence’s hypothetical alien whose credible-fear claim was rejected based on forged evidence. Both respondent and this hypothetical alien assert procedural irregularities. Does the availability of habeas review depend on a judge’s view of the severity of the irregularity asserted? Finally, there is the hypothetical alien denied asylum on the ground that Judaism is not a religion. Such a decision would of course be ridiculous, but why it would not raise a question of “brute fac[t]” that falls outside the concurrence’s interpretation of the Suspension Clause, *post*, at 154, is again not clear.

Whatever may be said about the concurrence’s hypotheticals, it is possible to imagine all sorts of abuses not even remotely related to unauthorized executive detention that could be imposed on people in this country if the Constitution allowed Congress to deprive the courts of any jurisdiction to entertain claims regarding such abuses. If that were to happen, it would no doubt be argued that constitutional provisions other than the

B

We now proceed to consider the second body of case law on which respondent relies, decisions of this Court during the “finality era,” which takes its name from a feature of the Immigration Act of 1891 making certain immigration decisions “final.” Although respondent claims that his argument is supported by “the writ as it existed in 1789,” Brief for Respondent 26, n. 12, his argument focuses mainly on this body of case law, which began a century later. These cases, he claims, held that “the Suspension Clause mandates a minimum level of judicial review to ensure that the Executive complies with the law in effectuating removal.” *Id.*, at 11–12. The Ninth Circuit also relied heavily on these cases and interpreted them to “suggest that the Suspension Clause requires review of legal and mixed questions of law and fact related to removal orders.” 917 F. 3d, at 1117.

This interpretation of the “finality era” cases is badly mistaken. Those decisions were based not on the Suspension Clause but on the habeas statute and the immigration laws then in force. The habeas statute in effect during this time was broad in scope. It authorized the federal courts to review whether a person was being held in custody in violation of any federal law, including immigration laws. Thus, when aliens claimed that they were detained in violation of immigration statutes, the federal courts considered whether immigration authorities had complied with those laws. This, of course, required that the immigration laws be interpreted, and at the start of the finality era, this Court interpreted the 1891 Act’s finality provision to block review of only questions of fact. Accordingly, when writs of habeas corpus were sought by aliens who were detained on the ground that they were not entitled to enter this country, the Court considered whether, given the facts found by the immigration

Suspension Clause guaranteed judicial review. We have no occasion to consider such arguments here.

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authorities, the detention was consistent with applicable federal law. But the Court exercised that review because it was authorized to do so by statute. The decisions did not hold that this review was required by the Suspension Clause.

In this country, the habeas authority of federal courts has been addressed by statute from the very beginning. The Judiciary Act of 1789, § 14, 1 Stat. 82, gave the federal courts the power to issue writs of habeas corpus under specified circumstances, but after the Civil War, Congress enacted a much broader statute. That law, the Habeas Corpus Act of 1867, provided that “the several courts of the United States . . . shall have power to grant writs of habeas corpus in all cases where any person may be restrained of his or her liberty in violation of the constitution, or of any treaty or law of the United States.” Judiciary Act of Feb. 5, 1867, ch. 28, § 1, 14 Stat. 385. The Act was “of the most comprehensive character,” bringing “within the *habeas corpus* jurisdiction of every court and of every judge every possible case of privation of liberty contrary” to federal law. *Ex parte McCardle*, 6 Wall. 318, 325–326 (1868). This jurisdiction was “impossible to widen.” *Id.*, at 326; see *Fay v. Noia*, 372 U. S. 391, 415 (1963) (noting the Act’s “expansive language” and “imperative tone”). The 1867 statute, unlike the current federal habeas statute, was not subject to restrictions on the issuance of writs in immigration matters, and in *United States v. Jung Ah Lung*, 124 U. S. 621 (1888), the Court held that an alien in immigration custody could seek a writ under that statute. *Id.*, at 626. This provided the statutory basis for the writs sought in the finality era cases.

The Immigration Act of 1891, enacted during one of the country’s great waves of immigration, required the exclusion of certain categories of aliens and established procedures for determining whether aliens fell within one of those categories. The Act required the exclusion of “idiots, insane persons, paupers or persons likely to become a public charge,”

persons with infectious diseases, persons with convictions for certain crimes, some individuals whose passage had been paid for by a third party, and certain laborers. Act of Mar. 3, 1891, ch. 551, § 1, 26 Stat. 1084. Inspection officers were authorized to board arriving vessels and inspect any aliens on board. § 8, *id.*, at 1085. And, in the provision of central importance here, the Act provided that “[a]ll decisions made by the inspection officers or their assistants touching the right of any alien to land, when adverse to such right, shall be final unless appeal be taken to the superintendent of immigration, whose action shall be subject to review by the Secretary of the Treasury.” *Ibid.* Later immigration Acts, which remained in effect until 1952,²² contained similar provisions. See Act of 1894, 28 Stat. 390; Immigration Act of 1907, § 25, 34 Stat. 907; Immigration Act of 1917, § 17, 39 Stat. 887.

The first of the finality era cases, *Nishimura Ekiu v. United States*, 142 U.S. 651 (1892), required the Court to address the effect of the 1891 Act’s finality provision in a habeas case. *Nishimura Ekiu* is the cornerstone of respondent’s argument regarding the finality era cases, so the opinion in that case demands close attention.

The case involved an alien who was detained upon arrival based on the immigration inspector’s finding that she was liable to become a public charge. Seeking to be released, the alien applied to the Circuit Court for a writ of habeas corpus and argued that the 1891 Act, if construed to give immigration authorities the “exclusive authority to determine” her right to enter, would violate her constitutional right to the writ of habeas corpus and her right to due process. *Id.*, at 656 (statement of the case). The Circuit Court refused to issue the writ, holding that the determination of

²² See *Shaughnessy v. Pedreiro*, 349 U.S. 48, 51–52 (1955) (interpreting 1952 Immigration and Nationality Act, 66 Stat. 163, to provide for review of deportation orders).